

2:00 PM

LINE 10

26-CIV-01212

MATTHEW PACLEB, INDIVIDUALLY, AND ON BEHALF OF OTHER SIMILARLY SITUATED
EMPLOYEES VS SALT & STRAW, LLC

MATTHEW PACLEB, INDIVIDUALLY, AND ON BEHALF OF OTHER SIMILARLY SITUATED EMPLOYEES

SALT & STRAW, LLC

MARK D KEMPLE

DEFENDANTS' MOTION TO CONSOLIDATE AND, ONLY IF NEEDED, TO LIFT STAY

TENTATIVE RULING:

Defendants Salt & Straw, LLC, Salt & Straw, Inc., and Salt & Straw Holdings, LLC's ("Defendants") Motion to Consolidate and, Only if Needed, to Lift Stay is GRANTED.

Code of Civil Procedure section 1048(a) provides:

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

The court finds that plaintiff Matthew Pacleb's class action (*Matthew Pacleb v. Salt & Straw, LLC, et al.*, case no. 26-CIV-01212) and his Private Attorney General Act (PAGA) action (*Matthew Pacleb v. Salt & Straw, LLC, et al.*, case no. 26-CIV-03215), both filed in San Mateo County, raise common questions of law and fact based on alleged Labor Code violations arising from the same defendants' policies and practices with regard to defendants' employment of plaintiff. The following chart shows the overlap of claims:

<i>Class action (lead case)</i>	<i>PAGA action</i> (premised on the following claims)
1) Failure to Pay Minimum Wages (§§ 35 – 40)	Failure to pay minimum wages (§ 36(b))
2) Failure to Pay Overtime Wages (§§ 41 – 48)	Failure to pay overtime wages (§ 36(a))
3) Meal Break Violations (§§ 49 – 60)	Failure to provide legally required meal periods & pay required meal period premiums (§§ 36(d), (e))
4) Rest Period Violations (§§ 61 – 70)	Failure to provide legally required rest periods & rest period premiums (§ 36(f), (g))
5) Failure to Timely Pay Wages (§§ 71 – 76)	Failure to timely pay wages (§ 36(h))

6) Wage Statement Violations (§§ 77 – 82)	Failure to provide accurate wage statements (§ 36(j))
7) Waiting Time Penalties (§§ 83 – 87)	Failure to pay all wages at time of discharge (§ 36(i))
8) Failure to Reimburse Business Expenses (§§ 88 – 91)	Failure to reimburse business-related expenses (§ 36(l))
9) Violation of the Unfair Competition Law, Bus. & Prof. Code §§ 17200, et seq. (§§ 92 – 97)	
	Unlawful wage deductions (§ 36(c))
	Failure to keep complete and accurate payroll records (§ 36(k))

While the class action raises an Unfair Competition Law claim that is not in the PAGA action and the PAGA action raises unlawful wage deduction and failure to keep complete and accurate payroll record claims that are not in the class action, the court finds that these claims are still based on the exact same underlying facts. There does not need to be a complete alignment of claims for the court to order consolidation. The efficiencies and saving of resources of consolidation outweigh the disadvantages of consolidation. In this court's experience, plaintiffs often bring the class and PAGA cases in one action or the parties stipulate to consolidate the claims. While the parties do not cite, and the court was unable to find any appellate authority directly considering the issue of the consolidation of class and PAGA claims, the court notes that in *Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582, our Supreme Court that discussed a trial court's handling of a class and PAGA case without any discussion about the impropriety of the claims being handled in one case.

As for plaintiff's argument that consolidation is improper because it will necessarily impose class action requirements on his PAGA action, the court finds that the argument is not well taken and unsupported by plaintiff's cited case law. This court can and regularly does handle class action cases which include a PAGA cause of action without violating plaintiffs' due process rights. Plaintiff argues that consolidation will cause unfair delay to his PAGA claim, but he makes no such showing and he has already agreed that (1) the court issue an order designating discovery produced in either case applicable to both; (2) the cases have joint case management conferences; and (3) if defendants file a motion, they can file it in both cases on a shared schedule with a single hearing. It would be inefficient for there to be two trials because the court, as the decider of fact in the PAGA case, can hear all the evidence in the class action, which is entitled to a jury trial, and any specific PAGA evidence can be presented outside the presence of the jury. Since the court must attend the jury trial, there is no downside to the court hearing evidence relevant to the class claims, which evidence is not relevant to the PAGA claims.

While the parties have stipulated to the mandatory stay pursuant to Code of Civil Procedure section 1281.4 pending disposition of defendants' motion to compel arbitration, the stipulation and order specifically carves out, as is appropriate, defendants' right to seek consolidation. (Stipulation & Order in 26Civ02323 filed Apr. 16, 2026 at p. 3:2-6.) Thus, the court has the jurisdiction to issue an order on consolidation.

Since 26Civ01212 was the first filed case, it shall be the lead case and it shall be consolidated with 26Civ03215

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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LINE 11

26-CIV-03215 MATTHEW PACLEB, INDIVIDUALLY AND ON BEHALF OF AGGRIEVED EMPLOYEES
PURSUANT TO THE CALIFORNIA PRIVATE ATTORNEYS GENERAL ACT VS SALT &
STRAW, LLC

MATTHEW PACLEB, INDIVIDUALLY AND ON BEHALF OF AGGRIEVED
EMPLOYEES PURSUANT TO THE CALIFORNIA PRIVATE ATTORNEYS
GENERAL ACT

SALT & STRAW, LLC

RYAN T. CHUMAN

MARK D KEMPLE

DEFENDANTS' MOTION TO CONSOLIDATE AND, ONLY IF NEEDED, TO LIFT STAY

TENTATIVE RULING:

See tentative ruling on motion to consolidate in case no. 26Civ01212, which tentative ruling is incorporated by reference as if set forth fully herein.
